CORAM: IN THE ASOFAN DISTRICT COURT HELD ON 21ST MARCH, 2025 BEFORE HER WORSHIP NANCY TEIKO SEARYOH (MRS.) SITTING AS MAGISTRATE

SUIT NO A1/23/24

1. REV.DR.RICHARD AMPONSAH
2. BEATRICE AMPONSAH (MRS.) - PLAINTIFFS

VRS:

MR. SARPONG - DEFENDANT

JUDGEMENT

On the 8th March, 2024, by a Writ of Summons and Statement of Claim, the Plaintiffs prayed for the following reliefs;

a. A declaration of title in favour of the Plaintiffs to all that piece of land situate and lying at North Akweteyman containing an approximate area of 0.11 acre or 0.55 hectre more or less and bounded on the North East by lessor's land measuring 66.2 feet more or less on the South East by lessor's land measuring 72.6 feet more or less on the North West by the lessor's land measuring 76.2 feet more or less on the South West by the proposed road measuring 66.3 feet more or less.

b. An order for perpetual injunction restraining the Defendant, their agents, servants, workmen and privies from trespassing onto the land.
c. Recovery of possession in favour of the Plaintiffs.
d. Damages for trespass.
e. General Damages.
f. Cost.

It is the Plaintiffs case that they own a land situated at North Akwetyman, Accra specifically Tantra Hill in the Greater Accra Region of the Republic of Ghana. They averred that sometime in August, 2018, they purchased a piece of land from one Nii Adjabeng Ankrah II, also known as Nii Ankrah, Head of Family of Dadeban-Naa Otublohum Family of Accra. The land was to serve as a parking area for a church they founded in 2016. They further averred that they were given an indenture by the said Head of Family to cover the purchase of the land and proceeded to construct a foundation, erected concrete pillars and fenced the land with mesh. They had been in undisturbed possession of the land until 14th February, 2024 when they got information that the Defendant had trespassed on the land and pulled down the galvanized mesh fence around the property and further threatened to pull down the concrete pillars and foundation constructed by the Plaintiffs on the land.

They again stated that they caused a report to be made at the Achimota Mile 7 Police Station of the galvanized fence around their land and that the Defendant was determined to forcefully take possession of their land and all efforts to stop him had proven futile. They also stated that the Defendant will not comply unless compelled by this Honourable Court to do so.

The Plaintiffs case was closed after the first Plaintiff testified because the Defendant failed to appear in Court to defend the suit. The Court's records indicate that the Defendant was served with all Court processes and Hearing Notices by Substituted Service because he was not available for personal service to be effected.

Order 4 rule 5 if C.I 59, District Court rules states that

"Where it appears to the Court either after or without an attempt at personal service that for any reason personal service cannot be conveniently effected, the Court may order for Substituted Service"

It is trite knowledge in law that Substituted Service is as good as personal service. Notwithstanding the fact that the Defendant was served with all processes by Substituted Service, the Defendant failed to appear in Court to defend the suit and to cross-examine the first Plaintiff.

According to **Order 25 rule 1 (2) (a) of C.I 59** ***"where an action is called for trial and a party fails to attend the trial, the Magistrate may where the Plaintiff attends and the Defendant fails to attend, dismiss the counterclaim if any and allow the Plaintiff to prove the claim"***

This being a civil suit, the standard of proof required of a party who makes assertions, which are denied is one on a balance of probabilities. This therefore requires a party making assertions to adduce such evidence in proof of the assertions such that the Court is convinced that the existence of the facts he or she asserts are more probable than their non-existence. See **Section 11 (1) and (4) and (14 of the Evidence Act, 1975 (NRCD 323)**.

I shall now examine the evidence adduced in support of the Plaintiffs' case and relate same in the context of the standard of proof I have already set out.

The first Plaintiff testifying on behalf of all Plaintiffs and in his Witness Statement repeated all the averments in his Statement of Claim and added that the Defendant is determined to forcefully take possession of their land and all efforts to stop him had proven futile and that the Defendant would not comply unless compelled by the Court to do so. He again stated that the Defendant ought to have seen the postings that had been done and all the processes served by Substituted Service because he had an adjoining property to the land in dispute but failed to appear in Court because he has no defence to the suit. He attached a copy of the indenture given to him after the purchase as Exhibit A, pictures of the land subject matter of the suit as Exhibit B series and Police extract from the stations diary as Exhibit C.

The Defendant failed to appear in Court to cross-examine the first Plaintiff on the evidence led. Having regard to the above, the Court hereby enters judgement for the Plaintiffs on their claim.

Thus, the Court hereby holds as follows:

I. That the Court declares the title of the land the subject matter of the suit in favour of the Plaintiffs. Thus, the Court declares all that piece and parcel of land lying at North Akweteyman containing an approximate area of 0.11 acre or 0.55 hectre more or less and bounded on the North East by lessor's land measuring 66.2 feet more or less; on the South East by lessor's land measuring 72.6 feet more or less; on the North West by the lessor's land measuring 76.2 feet more or less on the South West by the proposed road measuring 66.3 feet more or less is for the Plaintiffs.

II. That the Defendant, his agents, servants, assigns, workmen and privies are hereby perpetually restrained from trespassing on the said land at North Akweteyman – Accra.

III. Plaintiffs are to recover possession of the land the subject matter of the suit.

IV. The Court also awards GH¢2,000.00 as general damages for trespass.

V. Cost of GH¢3,000.00 for the Plaintiffs against the Defendant.

(SGD)

H/W NANCY TEIKO SEARYOH (MRS)

MAGISTRATE

PLAINTIFFS ABSENT

DEFENDANTS ABSENT

JENNIFER AMPONSAH ESQ FOR THE PLAINTIFFS PRESENT